SLEEK

CLIENT MEMBERSHIP AGREEMENT, ASSUMPTION OF RISK, WAIVER & RELEASE OF LIABILITY

Date: _____

This Client Membership Agreement, Assumption of Risk, Waiver & Release of Liability ("Agreement") is entered into by and between:

"Company" — Sleek Fitness LLC, located at Koreatown Plaza, 928 S Western Ave, STE 333, Los Angeles, CA 90006 (including its owners, officers, directors, members, managers, employees, agents, independent contractors, trainers, volunteers, and affiliates, collectively "Released Parties")

"Client" / "Member" — The individual identified and signing below

PLEASE READ THIS ENTIRE AGREEMENT CAREFULLY. THIS AGREEMENT INCLUDES A RELEASE OF LIABILITY, WAIVER OF CLAIMS, ASSUMPTION OF RISK, AND INDEMNIFICATION CLAUSE. BY SIGNING THIS AGREEMENT, YOU ARE GIVING UP SUBSTANTIAL LEGAL RIGHTS.

1. MEMBERSHIP TERMS

a. Membership. By signing this Agreement, the Client agrees to become a member of Sleek Fitness LLC ("Sleek") and to be bound by all terms, conditions, rules, and policies set forth herein and as may be amended from time to time.

b. Membership Type & Fees.

- Membership Plan: _____
- Monthly Fee: $_____
- Initiation/Enrollment Fee: $_____
- Payment Due Date: _____ of each month

c. Payment. The Client authorizes recurring payments via the payment method on file. Membership fees are non-refundable. Failure to pay may result in suspension or termination of membership and referral to collections. The Client is responsible for any collection costs, including reasonable attorneys' fees.

d. Membership Term. The membership shall commence on the date of this Agreement and continue on a month-to-month basis unless otherwise specified. Either party may cancel the membership with thirty (30) days' written notice.

Cancellation does not relieve the Client of any outstanding balance owed.

e. Rate Changes. The Company reserves the right to modify membership fees with thirty (30) days' written notice, except for founding members whose rates are locked as specified in their membership terms.

f. Freeze/Hold. The Client may request a membership freeze for up to _____ months per year for medical reasons or extended travel, with appropriate documentation. A reduced monthly freeze fee of $_____ may apply.

2. FACILITY RULES AND CONDUCT

a. Rules and Policies. The Client agrees to abide by all facility rules, policies, and posted signage as may be established and modified by the Company from time to time. Violation of facility rules may result in immediate suspension or termination of membership without refund.

b. Prohibited Conduct. The following conduct is strictly prohibited and may result in immediate termination:

- Harassment, intimidation, bullying, or threatening behavior toward any member, staff, trainer, or guest
- Use of illegal substances on the premises
- Bringing weapons of any kind onto the premises
- Theft, vandalism, or intentional damage to Company property
- Unauthorized recording, photography, or filming of other members
- Unsolicited personal training, coaching, or selling of services or products
- Use of the facility while under the influence of drugs or alcohol
- Any behavior that creates an unsafe environment for others

c. Guest Policy. Guests must be accompanied by a member at all times, sign a guest waiver, and pay any applicable guest fee. The member is responsible for the conduct and liability of their guest.

d. Personal Property. The Company is NOT responsible for loss, theft, or damage to any personal property brought onto the premises, including but not limited to vehicles in the parking area, items left in lockers, and personal electronics. Use of any storage or locker facilities is at the Client's sole risk.

e. Hours of Operation. The Company reserves the right to modify hours of operation, close for maintenance, holidays, or emergencies, or limit access to certain areas at any time without prior notice or liability to the Client.

3. ASSUMPTION OF RISK

THE CLIENT ACKNOWLEDGES THAT PHYSICAL EXERCISE AND USE OF FITNESS EQUIPMENT INVOLVE INHERENT RISKS OF INJURY, DISABILITY, AND DEATH THAT CANNOT BE ELIMINATED REGARDLESS OF THE CARE TAKEN TO AVOID SUCH RISKS.

a. Voluntary Participation. The Client acknowledges that participation in fitness activities, exercise programs, use of gym equipment, and personal training sessions at the Company's facility is entirely voluntary.

b. Knowledge of Risks. The Client acknowledges and understands that physical exercise and fitness activities involve inherent risks, including but not limited to:

- Muscle strains, sprains, tears, and pulls
- Broken bones, fractures, and joint injuries
- Heart attack, stroke, and cardiovascular events
- Paralysis, spinal cord injury, and traumatic brain injury
- Dehydration, heat stroke, and exhaustion
- Aggravation of pre-existing conditions, injuries, or illnesses
- Injuries from equipment malfunction, misuse, or failure
- Injuries from slips, trips, and falls on or around the premises
- Injuries caused by the actions or inactions of other members, guests, staff, or trainers
- Exposure to communicable diseases, bacteria, viruses, and infections
- Serious bodily injury and death

c. Full Assumption of Risk. **THE CLIENT KNOWINGLY, VOLUNTARILY, AND EXPRESSLY ASSUMES ALL RISKS OF INJURY, ILLNESS, DISABILITY, OR DEATH ARISING FROM OR RELATED TO THE CLIENT'S USE OF THE COMPANY'S FACILITIES, EQUIPMENT, SERVICES, PROGRAMS, AND PREMISES, WHETHER OR NOT CAUSED BY THE NEGLIGENCE OF THE RELEASED PARTIES.**

d. Medical Fitness. The Client represents and warrants that:

- The Client is physically fit and has no medical condition that would prevent safe participation in physical exercise
- The Client has consulted with a physician regarding the Client's fitness to participate in physical exercise activities, OR the Client voluntarily chooses to participate without such consultation and assumes all risks of doing so
- The Client will immediately cease activity and notify staff if the Client experiences any pain, discomfort, dizziness, nausea, or other symptoms during exercise
- The Client will notify the Company in writing of any changes to the Client's health or medical condition that may affect the Client's ability to safely exercise

e. No Medical Advice. The Company, its employees, and its affiliated trainers are NOT medical professionals (unless separately licensed). Any information, guidance, or recommendations provided by the Company or its trainers is for informational and fitness purposes only and does NOT constitute medical advice, diagnosis, or treatment.

4. WAIVER AND RELEASE OF LIABILITY

BY SIGNING THIS AGREEMENT, THE CLIENT WAIVES AND RELEASES ALL CLAIMS AGAINST THE

RELEASED PARTIES, INCLUDING CLAIMS FOR NEGLIGENCE.

a. Release of Claims. **TO THE FULLEST EXTENT PERMITTED BY LAW, THE CLIENT HEREBY RELEASES, WAIVES, DISCHARGES, AND COVENANTS NOT TO SUE** the Released Parties (Sleek Fitness LLC, its owners, officers, directors, members, managers, employees, agents, independent contractors, trainers, volunteers, and affiliates) from any and all liability, claims, demands, causes of action, damages, losses, and expenses (including attorneys' fees) of any kind, whether known or unknown, arising out of or in any way connected with:

- The Client's use of or presence at the Company's facility, equipment, programs, or services
- Any injury, illness, disability, death, or property damage sustained by the Client while on the Company's premises or while participating in any Company-related activity
- The negligence, acts, or omissions of the Released Parties
- The condition of the Company's premises, equipment, or facilities
- Any personal training, fitness instruction, or guidance provided by the Company's affiliated trainers
- Any interactions with other members, guests, staff, or third parties on the premises

b. Scope of Release. This release applies to claims arising from:

- Negligence (including active and passive negligence) of the Released Parties
- Equipment defects, malfunction, or failure
- Premises defects, hazards, or dangerous conditions
- Inadequate supervision, instruction, or training
- Actions of other members, guests, or third parties
- Any other cause whatsoever, except for claims arising from the Released Parties' gross negligence or willful misconduct

c. California Civil Code Section 1542 Waiver. The Client expressly waives and relinquishes all rights and benefits afforded by Section 1542 of the Civil Code of the State of California, which provides:

> *"A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party."*

The Client understands that this waiver means the Client is releasing claims the Client does not yet know about, and the Client does so voluntarily and with full knowledge of its significance.

d. No Liability for Site Conditions. **THE COMPANY IS NOT LIABLE FOR ANY INJURY, LOSS, OR DAMAGE** arising from or related to the condition of the facility premises, parking areas, common areas, stairways, hallways, locker rooms, restrooms, or any other area in or around the Company's location, including but not limited to:

- Wet, slippery, or uneven floors or surfaces

- Poor lighting or visibility
- Temperature or ventilation conditions
- Building structural conditions
- Fire, flood, earthquake, or other natural disasters
- Criminal acts of third parties on or near the premises
- Parking lot incidents, including vehicle damage, theft, or personal injury
- Any condition in the building, complex, or surrounding areas not under the direct operational control of the Company

e. Third-Party Services and Events. The Company may host or permit third-party events, classes, workshops, or services on its premises. The Company is NOT liable for any injury, loss, or damage arising from participation in such third-party activities.

5. INDEMNIFICATION

a. Client Indemnification. The Client agrees to indemnify, defend, and hold harmless the Released Parties from and against any and all claims, demands, causes of action, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees and court costs) arising out of or related to:

- The Client's use of the Company's facilities, equipment, or services
- The Client's breach of any term of this Agreement
- Any injury or damage caused by the Client to any other person or property while on the premises
- Any claim brought by or on behalf of the Client, the Client's heirs, executors, administrators, or assigns against any Released Party
- The Client's violation of any law, regulation, or facility rule
- Any guest brought onto the premises by the Client

6. PERSONAL TRAINING SERVICES

a. Independent Contractors. The Client acknowledges that personal trainers operating at the Company's facility may be independent contractors and NOT employees of the Company. The Company does not control the methods, techniques, or specific instructions of independent contractor trainers.

b. No Guarantee of Results. The Company and its affiliated trainers make NO guarantees or warranties regarding the results of any fitness program, training session, or exercise regimen. Results vary based on individual effort, genetics, adherence, nutrition, and other factors.

c. Cancellation Policy. Personal training sessions must be cancelled at least _____ hours in advance. Late cancellations or no-shows will be charged the full session fee.

d. Package Expiration. Personal training packages must be used within _____ months of purchase. Unused sessions are non-refundable and non-transferable after the expiration date.

e. Release for Training. The Client releases the Company from any and all liability arising from personal training services, including but not limited to injuries sustained during training sessions, regardless of whether the trainer was negligent in their instruction, supervision, or programming.

7. HEALTH REPRESENTATIONS AND MEDICAL DISCLAIMER

a. Health Questionnaire. The Client agrees to complete a health history questionnaire (PAR-Q or equivalent) truthfully and in its entirety prior to using the facility or engaging in any training.

b. Pre-Existing Conditions. The Client discloses the following known medical conditions, injuries, or limitations (if any):

_____

_____

c. Medication. The Client acknowledges that certain medications may affect the Client's ability to exercise safely and agrees to disclose any relevant medications to trainers before commencing a training session.

d. Pregnancy. If the Client is or becomes pregnant, the Client must notify the Company immediately and provide written medical clearance from a licensed physician before continuing to use the facility.

e. No Medical Duty. The Company has NO duty to provide medical care, emergency medical services, or medical supervision. While the Company may maintain first aid supplies and AED equipment, the Company makes no representation regarding the availability, adequacy, or suitability of such equipment, and assumes no liability for their use or non-use.

f. Emergency Authorization. In the event of a medical emergency, the Client authorizes the Company and its staff to contact emergency medical services (911) and to take reasonable steps to assist the Client. The Client agrees that any costs of emergency medical care are the Client's sole responsibility, and the Client releases the Company from any liability related to emergency response actions taken in good faith.

8. MEDIA RELEASE AND PRIVACY

a. Media Consent. The Client grants the Company a perpetual, irrevocable, royalty-free, worldwide license to photograph, film, and record the Client and to use the Client's name, likeness, image, voice, and testimonials in any media for promotional, advertising, and marketing purposes. The Client waives any right to inspect or approve the finished materials.

b. Opt-Out. The Client may opt out of the media release by notifying the Company in writing. Upon receipt of opt-out notice, the Company will make reasonable efforts to exclude the Client from future media but is not obligated to remove previously published materials.

c. Privacy Policy. The Client's personal information will be handled in accordance with the Company's Privacy Policy. The Client consents to receiving communications from the Company regarding membership, promotions, and facility updates via email, SMS, or other contact methods provided.

d. Surveillance. The Client acknowledges that the Company may use video surveillance and security cameras in common areas of the facility for safety and security purposes. The Client consents to such monitoring.

9. COMMUNICABLE DISEASE ACKNOWLEDGMENT

a. Risk Acknowledgment. The Client acknowledges that use of a fitness facility inherently involves the risk of exposure to communicable diseases, including but not limited to COVID-19, influenza, MRSA, and other bacterial or viral infections.

b. No Guarantee. The Company cannot guarantee an environment free from communicable diseases. While the Company takes reasonable sanitation measures, the Client assumes all risks of exposure.

c. Client Responsibility. The Client agrees not to use the facility if the Client is experiencing symptoms of any communicable illness and to follow all posted hygiene and sanitation protocols.

10. MINORS

a. Age Requirement. The Company's facility is intended for individuals aged 18 and older. Minors aged 16-17 may use the facility only with a signed parental/guardian consent form and in compliance with the Company's minor policy.

b. Parental Responsibility. If the Client is a parent or legal guardian signing on behalf of a minor, the parent/guardian agrees to all terms of this Agreement on behalf of the minor, assumes all risks on behalf of the minor, and releases the Released Parties from all claims related to the minor's use of the facility.

c. No Childcare. The Company does not provide childcare. Children under 16 are not permitted in the fitness areas.

11. DISPUTE RESOLUTION

a. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of California.

b. Venue. Any dispute arising under this Agreement shall be resolved exclusively in Los Angeles County, California.

c. Arbitration. Any dispute, claim, or controversy arising out of or relating to this Agreement, including the breach, termination, enforcement, interpretation, or validity thereof, shall be resolved by final and binding arbitration in Los Angeles County, California, administered by JAMS or the American Arbitration Association. The Client waives the right to a jury trial and to participate in a class action lawsuit or class-wide arbitration.

d. Class Action Waiver. **THE CLIENT AGREES THAT ANY CLAIMS AGAINST THE RELEASED PARTIES SHALL BE BROUGHT SOLELY IN THE CLIENT'S INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS ACTION, COLLECTIVE ACTION, OR REPRESENTATIVE PROCEEDING.**

e. Attorneys' Fees. In any dispute, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs from the non-prevailing party.

f. Statute of Limitations. Any claim arising under this Agreement must be brought within one (1) year of the date the claim accrues, or the claim is forever barred.

12. GENERAL PROVISIONS

a. Entire Agreement. This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior agreements, understandings, representations, and warranties.

b. Amendments. The Company reserves the right to amend this Agreement at any time. Continued use of the facility after notice of amendments constitutes acceptance.

c. Severability. If any provision of this Agreement is found to be unenforceable, the remaining provisions shall remain in full force and effect. Any unenforceable provision shall be reformed to the minimum extent necessary to be enforceable while preserving its original intent.

d. Waiver. Failure to enforce any provision shall not constitute a waiver of the right to enforce that or any other provision in the future.

e. Binding Effect. This Agreement is binding upon the Client and the Client's heirs, executors, administrators, assigns, and personal representatives.

f. Survival. The assumption of risk, waiver and release of liability, indemnification, and dispute resolution provisions shall survive the termination or expiration of this Agreement and the Client's membership.

g. Counterparts and Electronic Signatures. This Agreement may be executed in counterparts and by electronic signature, each of which shall be deemed an original.

13. CLIENT ACKNOWLEDGMENT

BY SIGNING BELOW, THE CLIENT ACKNOWLEDGES AND AGREES TO THE FOLLOWING:

Initial each item:

a. _____ I have read this entire Agreement, including the Assumption of Risk, Waiver, and Release of Liability, and I understand its terms.

b. _____ I understand that I am GIVING UP SUBSTANTIAL LEGAL RIGHTS by signing this Agreement, including the right to sue the Released Parties for negligence.

c. _____ I voluntarily assume ALL RISKS associated with using the Company's facilities, equipment, and services, including the risk of serious injury or death.

d. _____ I understand that the Company is NOT responsible for any injuries I sustain on the premises, including injuries caused by equipment, facility conditions, other members, trainers, or staff.

e. _____ I understand that the Company is NOT responsible for the condition of the building, parking areas, or surrounding premises.

f. _____ I understand that personal trainers may be independent contractors and the Company is not liable for their actions.

g. _____ I am physically fit to participate in exercise activities, or I choose to participate without medical clearance and assume all risks.

h. _____ I have had the opportunity to consult with a lawyer before signing this Agreement.

i. _____ I am signing this Agreement freely, voluntarily, and without coercion.

j. _____ I waive my rights under California Civil Code Section 1542.

CLIENT

Client Signature

Date

Printed Name

Date of Birth

Email Address

Phone Number

Address

Emergency Contact Name & Phone Number

PARENT / LEGAL GUARDIAN (required if Client is under 18)

Parent/Guardian Signature

Date

Printed Name

Relationship to Minor

COMPANY REPRESENTATIVE

Authorized Signature

Date

Printed Name & Title

This document is a template and does not constitute legal advice. Sleek Fitness LLC strongly recommends that all parties consult with a licensed attorney before executing this Agreement. Laws vary by jurisdiction — this document is drafted with California law in mind.